

5.	25PR0063	ESTATE OF ROBERT DOUGLAS WORRELL
PETITION FOR DETERMINATION OF HEIRSHIP AND PERSONS ENTITLED TO DISTRIBUTION		

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act was filed on March 21, 2025. Two adult children were identified, namely, Robert Patrick Worrell and Stephen Albert Flores-Worrell.

Letters of Administration were issued on June 16, 2025, appointing Robert Patrick Worrell ("Robert") to act with full authority under the Independent Administration of Estates Act.

On March 17, 2026, Petitioner, Christina Kauai Hayes ("Petitioner" or "Christina"), filed a Petition for Determination of Heirship and Persons Entitled to Distribution pursuant to Probate Code § 1170. An Amended Petition for Determination of Heirship and Persons Entitled to Distribution was filed on April 2, 2026. A Second Amended Petition for Determination of Heirship and Persons Entitled to Distribution was filed on April 13, 2026. The hearing was set for June 1, 2026.

Petitioner seeks a determination that she is a presumed natural child of the Decedent under Probate Code § 6453 and Family Code § 7611(d). Petitioner alleges Decedent received her into his home and exercised parental care, authority, and responsibility over her, and held her out as his natural child.

The Petition requests:

1. A determination that Petitioner is the natural child of the Decedent pursuant to Probate Code § 6453 and Family Code § 7611(d);
2. A determination that Petitioner is an heir entitled to distribution under Probate Code § 11700;
3. An order identifying Petitioner as a person entitled to distribution; and
4. Any relief as the Court deems just and proper.

On May 29, 2026, an Extension of Time to File a Response to Second Amended Petition for Determination of Heirship and Persons Entitled to Distribution filed by Christina Kauai was filed by Robert. A Notice of Hearing was filed on the same date, which included an Objection to Petition for Determination of Heirship and Persons Entitled to Distribution was filed. **The Court is not in receipt of this Objection.**

Upon no objections at the hearing on June 1, 2026, the matter was continued to July 6, 2026.

July 6, 2026
Dept. 9
Probate Tentative Rulings

Under California Family Code § 7611(d), a person is presumed to be a natural parent if they receive the child into their home and openly hold out the child as their own. Probate Code § 6453(a) incorporates this presumption directly, providing that a natural parent and child relationship is established where that relationship is presumed and not rebutted pursuant to the Uniform Parentage Act.

Petitioner has submitted documentary evidence in support of her request. No objections have been received by the Court.

TENTATIVE RULING #5:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 6, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.